

Court No. - 3

Case :- WRIT - C No. - 28709 of 2016

Petitioner :- Ajay Kumar Jaiswal

Respondent :- Uttar Pradesh Purvanchal Vidyut Vitran Nigam Ltd. & 2 Ors.

Counsel for Petitioner :- Sunil Kumar Singh, Virendra Kumar Pal

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Tarun Agarwala, J.

Hon'ble Krishna Murari, J.

The petitioner has disputed the electricity bill pursuant to which recovery certificate has been issued..

According to of the petitioner the bill of Rs. 57,788/- includes arrears of Rs.47,355/- which is incorrect.

In our view if the petitioner disputes the correctness of the bill, the remedy available to the petitioner is to move an appropriate application for correction of the bill under Regulation 6.5 of the U.P.Electricity Supply Code, 2005.

If such an application is filed, the Executive Engineer will consider and decide the same by passing a reasoned and speaking order within two weeks from the date of production of a certified copy of this order.

In the event, the petitioner deposits 50% of the amount, the balance shall not be recovered till disposal of the application.

The writ petition is disposed of.

Order Date :- 16.6.2016

MAA/-

(Krishna Murari, J.)

(Tarun Agarwala, J.)

